UNITED STATES DISTRICT COURT
FOR THE EASTERN DISTRICT OF PENNSYLVANIA

UNITED STATES DISTRICT COURT FOR THE EASTERN DISTRICT OF PENNSYLVANIA

Logan Reid Murphy,
Plaintiff,
v.
LexisNexis Risk Solutions, Inc.,
Defendant.

Logan Reid Murphy,
Plaintiff,
v.
LexisNexis Risk Solutions, Inc.,
Defendant.

Civil Action No. _____

Civil Action No.

COMPLAINT AND JURY DEMAND

This is an action for damages brought by an individual consumer against Defendant (named below) for violations of the Fair Credit Reporting Act, 15 U.S.C. § 1681 et seq. (the "FCRA").

INTRODUCTION

COMPLAINT AND JURY DEMAND

1. Plaintiff Logan Reid Murphy ("Mr. Murphy" or "Plaintiff") is a twenty-three-year-old college student with an Arizona driver's license, a clean driving record, and no connection to the State of Indiana. LexisNexis Risk Solutions, Inc. ("LexisNexis" or "Defendant") told his potential insurers otherwise.

This is an action for damages brought by an individual consumer against Defendant (named below) for violations of the Fair Credit Reporting Act, 15 U.S.C. § 1681 et seq. (the "FCRA").

Introduction

1. Plaintiff Logan Reid Murphy ("Mr. Murphy" or "Plaintiff") is a twenty-three-year-old college student with an Arizona driver's license, a clean driving record, and no connection to the State of Indiana. LexisNexis Risk Solutions, Inc. ("LexisNexis" or "Defendant") told his potential insurers otherwise.

2. LexisNexis merged Mr. Murphy's consumer file with that of Logan Joseph Murphy of Chesterton, Indiana — a different man who shares Mr. Murphy's first name, last name and date of birth, and nothing else. The two have different middle names, different Social Security numbers, and driver's licenses issued by different states.

3. Because of that, LexisNexis reported that Mr. Murphy had a suspended Indiana driver's license, six license suspensions, five traffic convictions — including a conviction for operating a vehicle while intoxicated — ten Indiana automobile insurance policies, six insurance claims with approximately $79,000 in paid losses, and another individual's collection accounts and late payments. LexisNexis sold that file to State Farm and Progressive multiple times between April and July 2026.

2. LexisNexis merged Mr. Murphy's consumer file with that of Logan Joseph Murphy of Chesterton, Indiana — a different man who shares Mr. Murphy's first name, last name and date of birth, and nothing else. The two have different middle names, different Social Security numbers, and driver's licenses issued by different states.

3. Because of that, LexisNexis reported that Mr. Murphy had a suspended Indiana driver's license, six license suspensions, five traffic convictions — including a conviction for operating a vehicle while intoxicated — ten Indiana automobile insurance policies, six insurance

4. The consequences were immediate. On his family's insurance agent's advice, Mr. Murphy was removed from his parents' State Farm policy so that the policy would not be cancelled. He was excluded as a driver from his wife's policy. He was quoted more than $2,400 for six months of liability-only coverage on a 2003 Ford Explorer. And the Arizona Motor Vehicle Division notified him that his registration would be suspended for lack of insurance and that he should not drive his vehicle.

5. Mr. Murphy did everything the FCRA asks of a consumer. He disputed the inaccurate information, item by item, over approximately nine hours of telephone calls. LexisNexis responded by telling him that records had been "removed" — and then generating a new copy of his file that still contained them. When he called to ask why, LexisNexis' representatives told him they could not find his file. Two weeks later, LexisNexis — which had already authenticated Mr. Murphy at least three different times — wrote that it was "unable to authenticate [his] identity" and would not process his request.

6. None of this should have happened. LexisNexis had Mr. Murphy's correct Social Security number, Arizona driver's license number and addresses. Every one of the other man's records carried an Indiana driver's license number, Indiana addresses, the middle name "Joseph," and a different Social Security number. A cursory comparison of identifiers would have kept the two files apart, and a reasonable reinvestigation would have separated them the moment Mr. Murphy disputed.

7. Plaintiff brings this action under Sections 1681e(b) and 1681i of the FCRA for LexisNexis' willful and negligent failure to follow reasonable procedures to assure the maximum possible accuracy of his consumer reports and its failure to conduct a reasonable reinvestigation and correct his file, and seeks statutory damages, litigation costs, attorney fees and costs.

JURISDICTION AND VENUE

8. Jurisdiction of this Court arises under 15 U.S.C. § 1681p, and 28 U.S.C. §1331, 1337.

9. Venue lies properly in this district pursuant to 28 U.S.C. §1391(b).

7. Plaintiff brings this action under Sections 1681e(b) and 1681i of the FCRA for

PARTIES

LexisNexis' willful and negligent failure to follow reasonable procedures to assure the maximum

10. Mr. Murphy is an adult individual who resides in Rexburg, ID, where he attends

possible accuracy of his consumer reports and its failure to conduct a reasonable reinvestigation

college. Mr. Murphy holds an Arizona driver's license, and his vehicle was registered in Arizona.

and correct his file, and seeks actual, statutory and punitive damages, together with attorneys' fees

11. Defendant LexisNexis is a business entity that is registered to do business in the

and costs.

Commonwealth of Pennsylvania and regularly conducts business in the Eastern District of

Pennsylvania, with a principal place of business located at 1000 Alderman Drive, Alpharetta, GA

Jurisdiction and Venue

30005. LexisNexis is known as a consumer reporting agency ("CRA") under the FCRA.

8. Jurisdiction of this Court arises under 15 U.S.C. § 1681p, and 28 U.S.C. §1331,

FACTS

1337.

Consumer Reports and the Purpose of the FCRA

9. Venue lies properly in this district pursuant to 28 U.S.C. §1391(b).

12. Consumer reports provide information bearing on, among other things, a

consumer's creditworthiness, character, general reputation, personal characteristics and mode of

Parties

living.

10. Mr. Murphy is an adult individual who resides in Rexburg, ID, where he attends

13. Consumer reports are meant to enable insurers, creditors and other providers of

college. Mr. Murphy holds an Arizona driver's license, and his vehicle was registered in Arizona.

consumer services to make informed risk decisions about new applicants and existing customers.

11. Defendant LexisNexis is a business entity that is registered to do business in the

These reports are used to make decisions having to do with insurance, housing, employment,

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credit and more.

Pennsylvania, with a principal place of business located at 1000 Alderman Drive, Alpharetta, GA

14. Early on Congress understood the dire consequences of inaccurate consumer

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reporting and enacted the FCRA to "insure that consumer reporting agencies exercise their grave

responsibilities with fairness". See 15 U.S.C. § 1681(a).

15. Thus, in order to further its objectives, embedded within the FCRA is the

Facts

requirement that CRAs conduct reasonable investigations to determine whether information

Consumer Reports and the Purpose of the FCRA

disputed by consumers is inaccurate and record the current status of the disputed information, or

12. Consumer reports provide information bearing on, among other things, a

delete the disputed information, before the end of the 30-day period beginning on the date on

consumer's creditworthiness, character, general reputation, personal characteristics and mode of

which the CRA receives the notice of dispute from the consumer.

living.

LexisNexis and the Insurance Reporting Industry

Mixed File Problems of the Consumer Reporting Industry

16. LexisNexis regularly receives information from various sources around the country including insurance carriers, state motor vehicle departments, courts, other CRAs, lenders, debt collectors, public records vendors, and others.

17. Among the consumer reports LexisNexis sells to automobile insurers are: (a) the Comprehensive Loss Underwriting Exchange, or "C.L.U.E.," report, which lists the automobile insurance claims LexisNexis associates with a consumer; (b) the "Current Carrier" report, which lists the automobile insurance policies LexisNexis associates with a consumer, including coverage, cancellations and lapses; and (c) driving records, including license status, suspensions and traffic convictions.

Mixed File Problems of the Consumer Reporting Industry

18. Defendant is well aware that different consumers can have similar names.

19. Defendant also knows that different consumers can have similar Social Security numbers, birthdays and other personal identifying information.

20. Defendant matches insurance policy, claim, driving, public record and credit information to a consumer file by comparing the information about the consumer associated with the record to the information it maintains about the consumer in the consumer file.

21. Sometimes Defendant's matching algorithms associate information belonging to one consumer to the consumer file of another consumer; resulting in what is commonly known in the industry as a mixed or merged file.

22. A mixed or merged file is the result of Defendant inaccurately mixing personal identifying information, public record information, insurance information, credit information and/or an entire consumer file belonging to one consumer into the file of another consumer. See FTC v. TRW, Inc., 784 F. Supp. 361, 362 (N.D. Tex. 1991) (The Federal Trade Commission defined a mixed credit file as a file that "refers to a Consumer Report in which some or all of the information pertains to Persons other than the Person who is the subject of that Consumer Report.")

41. Mixed files are not a new phenomenon.

42. LexisNexis has a long-standing and specific knowledge of the mixed file problem.

43. There are many different possible causes for a mixed file but all of them relate in one way or another to the algorithms (the database rules) used by the Defendant to match personal identifying information and insurance, driving, public record and credit information to a particular consumer's file.

44. These rules also determine which files are selected by the algorithm and are merged to create a complete consumer report.

noncompliance with statutory duties can establish that the defendants acted willfully. See Safeco Ins. Co. of Am. v. Burr, 551 U.S. 47, 53 (2007) (punitive damages can be awarded based on "reckless disregard for a statutory duty").

53. No less than three federal Courts of Appeal have held that a CRA violates 15 U.S.C. § 1681e(b) and may be found to have willfully violated the FCRA when it mixes a consumer's file with another individual.

54. Finally, the FTC has specifically warned CRAs to review their procedures when a mixed file case occurs.

Two Different Consumers

55. Despite federal and state law, Congressional mandate, federal and state enforcement actions, and thousands of consumer lawsuits, mixed consumer files remain a significant problem for Defendant, as well as innocent consumers, including Plaintiff.

56. Mr. Murphy is twenty-three years old. He grew up in Peoria, Arizona, where his parents still live and where he was a listed driver on his parents' State Farm automobile policies. He holds an Arizona driver's license. He attends college in Rexburg, Idaho, where he lives with his wife, whom he married in April 2026. He is also employed.

57. Mr. Murphy has never lived in Indiana, has never held an Indiana driver's license, has never been a party to an Indiana automobile insurance policy or claim, has never had his driver's license suspended, and has never been arrested for, charged with, or convicted of driving while intoxicated.

58. Logan Joseph Murphy (the "Other Consumer") is a different person who lives in Chesterton, Indiana. He holds an Indiana driver's license, which is suspended. He has a different

Mixed files are not a new phenomenon.
LexisNexis has a long-standing and specific knowledge of the mixed file problem.
LexisNexis has admitted, in its own correspondence to Mr. Murphy, that its "matching process accounts for potential variations in name, address, and other minor identifiers found in our files." In other words, LexisNexis has designed its matching procedures to tolerate mismatches in the very identifiers that distinguish one consumer from another.
Case Background
Two Different Consumers
Mr. Murphy is twenty-three years old. He grew up in Peoria, Arizona, where his parents still live and where he was a listed driver on his parents' State Farm automobile policies. He holds an Arizona driver's license. He attends college in Rexburg, Idaho, where he lives with his wife, whom he married in April 2026. He is also employed.
Case Background
Two Different Consumers
Mr. Murphy is twenty-three years old. He grew up in Peoria, Arizona, where his parents still live and where he was a listed driver on his parents' State Farm automobile policies.
He holds an Arizona driver's license. He attends college in Rexburg, Idaho, where he lives with his wife, whom he married in April 2026. He is also employed.
LexisNexis Merged the Two Consumers' Files
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Logan Joseph Murphy (the "Other Consumer") is a different person who lives in Chesterton, Indiana. He holds an Indiana driver's license, which is suspended. He has a different

(c) the Indiana Bureau of Motor Vehicles as a "source" of Mr. Murphy's identifying information, even though Mr. Murphy has never had any dealings with the Indiana Bureau of Motor Vehicles;

(d) an Indiana driver's license record for "Logan Joseph Murphy," including his physical description and Indiana address, with a license status of "SUSPENDED";

(e) six driver's license suspensions between April 2025 and June 2026, for chemical test failure, operating a vehicle per se, failure to appear for a driver safety program, failure to file proof of insurance, failure to file an SR-22, and pending chemical test results;

(f) traffic convictions from Indiana courts, including speeding, following too closely, failure to provide proof of insurance, and a March 24, 2025, conviction in Porter Superior Court for operating a vehicle per se with a blood alcohol concentration of .08 or more;

(g) ten Indiana automobile insurance policies issued by State Farm and Progressive to "Logan J Murphy," co-insured with Joyce L. Murphy, covering Indiana vehicles, several of which reflect mid-term cancellations;

(h) six automobile insurance claims, with loss dates of January 3, 2023, June 1, 2024, January 24, 2025, August 29, 2025, June 17, 2026, and July 17, 2026, with approximately $79,000 in paid collision, property damage and medical payments;

(i) credit report information obtained from Equifax and Experian for "Logan J Murphy" of Chesterton and Portage, Indiana, including, on the Experian report, two Capital One collection accounts, two LVNV Funding accounts reported as bad debts, late payments, and the Other Consumer's employer; and

(j) approximately sixty inquiries by a debt collector, Midland Credit Management, and numerous automobile-finance credit inquiries, all of which relate to the Other Consumer's debts and credit applications.

61. None of the Inaccurate Information belongs to Mr. Murphy.

62. Every item of the Inaccurate Information carried identifiers that plainly did not match Mr. Murphy: an Indiana driver's license number, Indiana addresses, the middle name "Joseph," a different Social Security number, and a co-insured whom Mr. Murphy has never met.

(i) approximately sixty inquiries by a debt collector, Midland Credit Management, and numerous automobile-finance credit inquiries, all of which relate to the Other Consumer's debts and credit applications.

30. None of the Inaccurate Information belongs to Mr. Murphy.

31. Every item of the Inaccurate Information carried identifiers that plainly did not match Mr. Murphy: an Indiana driver's license number, Indiana addresses, the middle name "Joseph," a different Social Security number, and a co-insured whom Mr. Murphy has never met.

32. LexisNexis had Mr. Murphy's correct Social Security number, Arizona driver's license number, and Arizona and Idaho addresses in its file. It reported the Inaccurate Information anyway.

The Mixed File Costs Mr. Murphy His Insurance

33. Mr. Murphy married in April 2026 and, in June 2026, began shopping for his own automobile insurance.

34. Every insurer from which Mr. Murphy sought a quote told him that his record reflected multiple accidents, violations and insurance claims, which he knew were not his.

35. The agent advised Mr. Murphy's parents to remove Mr. Murphy from their Arizona State Farm policy before the Inaccurate Information caused the policy to be cancelled. Mr. Murphy's parents did so, and Mr. Murphy's coverage under his parents' policy ended on or about July 21, 2026.

36. When Mr. Murphy's wife obtained a Progressive policy in Idaho on or about July 8, 2026, Mr. Murphy was listed on the policy as an "Excluded Driver."

Mr. Murphy's Disputes

37. On June 30, 2026, Mr. Murphy called LexisNexis to dispute the Inaccurate Information and to request a copy of his file. LexisNexis' representative initially could not verify Mr. Murphy's identity — because the identifying information in his LexisNexis file had been blended with the Other Consumer's.

The Mixed File Costs Mr. Murphy His Insurance

64. Mr. Murphy married in April 2026 and, in June 2026, began shopping for his own automobile insurance.

65. Every insurer from which Mr. Murphy sought a quote told him that his record reflected multiple accidents, violations and insurance claims, which he knew were not his.

66. Mr. Murphy contacted his parents' State Farm agent to find out why. The agent informed Mr. Murphy that his information was being blended with that of the Other Consumer and sent Mr. Murphy a news article — including a booking photograph — reporting the Other Consumer's June 17, 2026, arrest for driving under the influence.

67. The agent advised Mr. Murphy's parents to remove Mr. Murphy from their Arizona State Farm policy before the Inaccurate Information caused the policy to be cancelled. Mr. Murphy's parents did so, and Mr. Murphy's coverage under his parents' policy ended on or about July 21, 2026.

68. When Mr. Murphy's wife obtained a Progressive policy in Idaho on or about July 8, 2026, Mr. Murphy was listed on the policy as an "Excluded Driver."

Mr. Murphy's Disputes

69. Mr. Murphy learned that the Inaccurate Information was coming from LexisNexis.

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38. On July 14, 2026, Mr. Murphy called LexisNexis to dispute the remaining Inaccurate Information. He had to call approximately five times because, on more than one occasion, the call was disconnected before he was able to resolve his inquiry. After a total of approximately 102 minutes on the telephone, Mr. Murphy disputed each remaining item and was told that LexisNexis would respond within thirty days.

39. Mr. Murphy accessed the "current copy" of his file, a 204-page consumer disclosure dated August 12, 2026. The Inaccurate Information was still there. The disclosure still contained the Other Consumer's Indiana driver's license record, his six suspensions, his traffic convictions — including the March 24, 2025, conviction for operating a vehicle with a blood alcohol concentration of .08 or more, which LexisNexis had told Mr. Murphy ten days earlier had been "removed" — his ten Indiana insurance policies, his six insurance claims, his Indiana addresses, and the Experian and Equifax credit information LexisNexis had furnished as Mr. Murphy's.

40. By letter dated August 2, 2026, LexisNexis reported the results of its reinvestigation of Mr. Murphy's disputes. LexisNexis stated that certain records had been removed, that certain insurance policy records were "unverifiable", and that other insurance policy records furnished by State Farm and by Progressive were "accurate and will remain on your file." The letter enclosed a link to "a current copy of your file," which LexisNexis stated, "has been generated to include the most up to date data."

41. The link LexisNexis provided in the August 2, 2026 letter to view his updated file did not work.

42. By letter dated August 12, 2026, LexisNexis reported the results of its reinvestigation of Mr. Murphy's disputes. LexisNexis stated that certain records had been removed, that certain insurance policy records were "unverifiable", and that other insurance policy records furnished by State Farm and by Progressive were "accurate and will remain on your file." The letter enclosed a link to "a current copy of your file," which LexisNexis stated, "has been generated to include the most up to date data."

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81. The court records LexisNexis had reported as "removed" on August 2, 2026, remained in Mr. Murphy's file on August 12, 2026, now attributed to a different source — the Indiana Bureau of Motor Vehicles — rather than to the courts LexisNexis claimed to have contacted in his prior report.

82. LexisNexis "verified" the Other Consumer's State Farm and Progressive records as Mr. Murphy's even though those records bore an Indiana driver's license number, Indiana addresses and a co-insured that did not match the identifying information LexisNexis had for Mr. Murphy, and even though Mr. Murphy had told LexisNexis exactly whose records they were.

83. On August 19, 2026, Mr. Murphy immediately called LexisNexis. While Mr. Murphy was looking at the file he had accessed using the link and PIN LexisNexis had mailed him, LexisNexis' representatives told him that they could not find his file. After approximately 104 minutes on the telephone, and after the call was disconnected, Mr. Murphy then called back and was told that a supervisor would call him back the following day.

84. A LexisNexis supervisor called Mr. Murphy on August 20, 2026. She could not tell him what was going on, and told him that she would manually write down, again, each of the records Mr. Murphy had disputed that remained in his file despite LexisNexis' statement that they had been removed.

85. On August 25, 2026, a LexisNexis representative told Mr. Murphy that his file was "in the backend being recreated." The representative could not tell Mr. Murphy when the problem would be resolved.

86. By letter dated August 26, 2026, LexisNexis — once again — informed Mr. Murphy that it was "unable to authenticate your identity and could not process your request." This was despite previously having accepted his identity documents to process a prior dispute.

87. Mr. Murphy called LexisNexis again on August 31 and September 1, 2026. On September 1, 2026, a LexisNexis supervisor told Mr. Murphy that there was no one at LexisNexis to whom he could speak to ensure that his file was corrected.

105. Plaintiff's consumer reports and file have been obtained from the Defendant and have been reviewed by prospective and existing insurers, and the Inaccurate Information has been a substantial factor in precluding Plaintiff from receiving insurance coverage and insurance opportunities at fair rates, known and unknown.

106. As a result of Defendant's violations of the FCRA, Plaintiff has suffered a range of actual damages, including, without limitation, loss of insurance coverage and insurance opportunities; increased cost of insurance; loss of time and money; interference with his ability to drive to school and to work and with his daily activities; reputational damage; loss of sleep; and emotional distress, including mental anguish, anxiety, fear, worry, stress, anger, frustration, humiliation, and embarrassment, including that attendant to his disputes and to being repeatedly disbelieved, disconnected, and told that he could not be identified by the company that was selling reports about him.

COUNT ONE – VIOLATIONS OF THE FCRA

50. Plaintiff incorporates the foregoing paragraphs as though the same were set forth at length herein.

51. At all times pertinent hereto, LexisNexis was a "person" and a "consumer reporting agency" as those terms are defined by 15 U.S.C. § 1681a(b) and (f).

52. At all times pertinent hereto, Plaintiff was a "consumer" as that term is defined by 15 U.S.C. § 1681a(c).

Count One – Violations of the FCRA

Plaintiff v. LexisNexis

53. LexisNexis has violated numerous provisions of the FCRA for its improper actions, including but not limited to Sections 1681e(b) and 1681i of the FCRA. LexisNexis willfully and negligently violated the FCRA and is liable for damages to Plaintiff pursuant to Section 1681n and 1681o of the FCRA.

54. The conduct of LexisNexis was a direct and proximate cause, as well as a substantial factor, in bringing about the actual damages and harm to Plaintiff that are outlined more fully above and, as a result, Defendant is liable to Plaintiff for the full amount of statutory, actual and punitive damages, along with the attorneys' fees and the costs of litigation, as well as such further relief, as may be permitted by law.

JURY TRIAL DEMAND

55. Plaintiff demands trial by jury on all issues so triable.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff seeks judgment in Plaintiff's favor and damages against the Defendant, based on the following requested relief:

(a) Actual damages;

(b) Statutory damages;

(c) Punitive damages;

(d) Costs and reasonable attorneys' fees; and

(e) Such other relief as may be necessary, just and proper.

Date: October 13, 2026

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